

Maharashtra Construction of References to "District Magistrate" in the Hyderabad Area (Repeal) Act, 1960

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State of Maharashtra - Act

Maharashtra Construction of References to "District Magistrate" in the Hyderabad Area (Repeal) Act, 1960

MAHARASHTRA

India

Maharashtra Construction of References to "District Magistrate" in the Hyderabad Area (Repeal) Act, 1960

Act 14 of 1960

Published on 6 October 1960

Commenced on 6 October 1960

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Maharashtra Construction of References to "District Magistrate" in the Hyderabad Area (Repeal) Act, 1960

Maharashtra Act

No. 14 of 1960

[Dated 6th October, 1960]

For Statement of Objects and Reasons, see Maharashtra Government Gazette, 1960, Part V, page 51.

An Act to delete from certain laws, in relation to the Hyderabad area of the State of Maharashtra certain provisions about construing references to District Magistrate as references to Collector and Additional "District Magistrate";

Whereas provision has been made in certain laws, in relation to the Hyderabad area of the State of Maharashtra, that references to "District Magistrates" therein mean, or shall be construed as references to, "the Collector" or to "the

Collector and Additional District Magistrate" ;

And Whereas, on the commencement of the Bombay Separation of Judicial and Executive Functions (Extension) and the Code of Criminal Procedure (Provision for Uniformity) Act, 1958, officers of the designation of "Collector and Additional District Magistrate" have ceased to exist in that area and Collectors of Districts have been appointed District Magistrates of 1898, under the Code of Criminal Procedure, 1898, in consequence whereof it is expedient to delete the aforesaid provisions from such laws ;

It is hereby enacted in the Eleventh Year of the Republic of India as follows :-

1.

Short title.

- This Act may be called the Maharashtra Construction of References to "District Magistrate" in the Hyderabad Area (Repeal) Act, 1960.

2.

Repeal of certain provisions relating 10 Collectors and Additional District Magistrates in Hyderabad area.

(1)

Any provision of a law which, in effect, provides that references to the District Magistrate in relation to the Hyderabad area or any district therein mean, or shall be construed as references to, "the Collector" or "Collector and Additional District Magistrate" shall be deemed to have ceased to have effect from the first day of September 1959, except as respects things done or omitted to be done before that date.

(2)

The enactments in the Schedule shall be deemed to have been deleted on the aforesaid date.

Schedule

(See section 2.)

1. Clause (4A) of section 3 of the Prisons Act, 1894 (IX of 1894), in its application to the State of Maharashtra.

2. Clause (5A) of section 2 of the Bombay Police Act, 1951 (Bombay XXII of 1951.)

3.

Sub-clause (ii) of clause (d) of section 2 of the Bombay Habitual Offenders Act, 1959 (Bombay LXI of 1959).

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